

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #13	CCRB Case #: 201901290	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/30/2019 4:57 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/16/2021	Precinct: 101		
Date/Time CV Reported Thu, 01/31/2019 4:08 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/12/2019 11:14 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Mercurio	06865	954130	101 PCT
2. POM Lukasz Solis	14287	943832	101 PCT
3. LT Brian Padovani	00000	944872	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Brian Padovani	Abuse: Lieutenant Brian Padovani entered § 87(2)(b) in Queens.	A . Unsubstantiated
B . LT Brian Padovani	Abuse: Lieutenant Brian Padovani searched § 87(2)(b) in Queens.	B . Substantiated
C . LT Brian Padovani	Abuse: Lieutenant Brian Padovani failed to provide § 87(2)(b) with a business card.	C . Alleged Victim Uncooperative
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On January 31, 2019, § 87(2)(b) filed this complaint with IAB by phone on behalf of himself and his friend § 87(2)(b). The complaint was received by the CCRB on February 12, 2019 under IAB Log 2019-4947.

On January 30, 2019, at approximately 4:57 p.m., § 87(2)(b) left a § 87(2)(b) business located at § 87(2)(b) in Queens at which he is a co-owner. § 87(2)(b) went to the 101st Precinct stationhouse to file a criminal complaint. Lt. Brian Padovani, PO Lukasz Solis, and PO Michael Mercurio of the 101st Precinct went to the § 87(2)(b) business while § 87(2)(b) was at the stationhouse. On the authority of Lt. Padovani, the § 87(2)(b) business was entered (**Allegation A: Abuse of Authority, Unsubstantiated**) and searched (**Allegation B: Abuse of Authority, Substantiated**). Lt. Padovani allegedly failed to provide a business card to § 87(2)(b) who was overseeing the business in § 87(2)(b)'s absence (**Allegation C: Abuse of Authority, Alleged Victim Uncooperative**). § 87(4-b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Surveillance video from the § 87(2)(b) business was obtained (Video contained in BR01-02; Written summary in BR03). The officers involved in this incident were not equipped with body worn cameras.

§ 87(2)(b) was arrested while at the stationhouse due to an unrelated open criminal complaint.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

Findings and Recommendations

Allegation A – Abuse of Authority: Lieutenant Brian Padovani entered § 87(2)(b) in Queens.

Allegation B – Abuse of Authority: Lieutenant Brian Padovani searched § 87(2)(b) in Queens.

The following facts are undisputed. Lt. Padovani, PO Mercurio, and PO Solis went to § 87(2)(b), a § 87(2)(b) business, while § 87(2)(b) was at the 101st Precinct stationhouse. Lt. Padovani and PO Mercurio entered behind the business' main counter to search the basement, an area which is not accessible to general members of the public doing business in the store.

§ 87(2)(b) testified that he is a co-owner of the § 87(2)(b) business (BR05). § 87(2)(b) left the store and went to the 101st Precinct stationhouse to file a criminal complaint against his girlfriend, § 87(2)(b). § 87(2)(b) a friend of § 87(2)(b)'s, remained in the store. § 87(2)(b) is not an employee of the § 87(2)(b) business, but occasionally sells items such as DVDs, hats, or other assorted items that are displayed in the storefront window. § 87(2)(b) instructed § 87(2)(b) to tell any customers that he would be back soon and not to allow anyone behind the store's counter. While at the stationhouse, § 87(2)(b) reported to officers that § 87(2)(b) had

assaulted her and § 87(2)(b) was subsequently arrested. While in custody, § 87(2)(b) heard officers say that § 87(2)(b) alleged he had a gun. § 87(2)(b) was never asked for consent to search his § 87(2)(b) business.

A brief phone statement about the incident was obtained from § 87(2)(b) (BR06). § 87(2)(b) stated that he was seated at the front of the store when three officers entered the store. One of the officers stated, “We’re going in the back behind the counter.” § 87(2)(b) did not know what to do, did not argue with the officers, and did not say anything to the officers. The officers did not ask § 87(2)(b) if he worked at the store. § 87(2)(b) believed that the officers were allowed to search the store because they were police officers. The officers went behind the counter and to the back of the store. An officer asked § 87(2)(b) “Where’s the safe at?” § 87(2)(b) said, “I don’t know anything about that. I just work up front for the fella.” The officers did not say anything else to § 87(2)(b) and left. § 87(2)(b) was ultimately uncooperative with the investigation (See IAs for contact attempts).

Surveillance video from the § 87(2)(b) business shows officers entering the location and conversing briefly with § 87(2)(b) before going behind the counter and to the back of the store (BR01-02).

A Domestic Incident Report (DIR) was prepared by PO Christopher Carlino who assisted in the arrest processing of § 87(2)(b) at the stationhouse (BR08). The DIR was prepared on behalf of § 87(2)(b) who reported that § 87(2)(b) had access to guns.

Lt. Padovani testified that he left his office and went to the stationhouse lobby where he observed § 87(2)(b) and § 87(2)(b) yelling at each other (BR09). § 87(2)(b) reported that § 87(2)(b) assaulted her and threatened her with a gun which he stored in a safe in the basement of his § 87(2)(b) business. § 87(2)(b) was about 10 feet away in the complaint room, was not in custody, was on the phone, and was in a position to hear what § 87(2)(b) was reporting. § 87(2)(b) was ultimately arrested for § 87(2)(b). Lt. Padovani went to the § 87(2)(b) business intending to seek consent from an employee to search the basement for the safe. Lt. Padovani did not have any indication that § 87(2)(b) was an owner of the business. If § 87(2)(b) complaint about the gun was valid and a safe was found, a search warrant would have been requested to secure the safe. Upon arriving at the store, Lt. Padovani encountered § 87(2)(b) and asked him if he was an employee. § 87(2)(b) affirmed he was. Lt. Padovani asked § 87(2)(b) if the officers could go behind the counter and search the basement. § 87(2)(b) was cooperative and told the officers they could look around. Lt. Padovani did not remember what, if anything, he told § 87(2)(b) about the officers’ purpose for being there. Lt. Padovani and PO Mercurio went to the basement where no safe or gun was found.

Lt. Padovani acknowledged in his CCRB interview that the officers’ investigation at the § 87(2)(b) business was not documented anywhere. Lt. Padovani said he committed a clerical error in not documenting this incident (See Allegation D).

PO Mercurio’s and PO Solis’ testimony was generally consistent with Lt. Padovani’s and did not provide any additional details or context about the request for consent from § 87(2)(b) (BR10-11).

§ 87(2)(g)

A warrantless search of a business may be conducted on the voluntary consent of a third person with authorized access to the area or who appears to have the requisite degree of authorized access. People v. Remo, 98 AD 2d 843 (1983) (BR12).

NYC Administrative Code, Section 14-173 outlines various provisions officers must adhere to when obtaining consent to conduct a search (BR13).

- NYC Administrative Code 14-173(a)(1) – articulate, using plain and simple language delivered in a non-threatening manner, that the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to the search, and explain that the search will not be conducted if the person refuses to consent to the search;
- NYC Administrative Code 14-173(a)(2) – must obtain consent without threats or promises of any kind being made to the individual;
- NYC Administrative Code 14-173(a)(3) – must affirm that the individual understands the information communicated as per Subsection (a)(1);
- NYC Administrative Code 14-173(a)(4) – must refrain from conducting such search where consent has not been obtained; and
- NYC Administrative Code 14-173(b)(2) – Regardless of the officer having a BWC, the officer must properly document the time, location, and date of such search and the apparent race/ethnicity, gender, age of the person who was the subject of the search and the officer’s name, precinct, and shield number.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **substantiated**.

Allegation C – Abuse of Authority: Lieutenant Brian Padovani failed to provide § 87(2)(b) with a business card.

In his phone statement, § 87(2)(b) stated that he did not get any of the officers' names and did not obtain any information from any of them. As described above, § 87(2)(b) refused to provide a sworn statement about this incident and was ultimately uncooperative with the investigation (See IAs for contact attempts).

The available video footage did not capture how the encounter ended and did not show if a business card was provided to § 87(2)(b).

Lt. Padovani did not remember if he provided a business card to § 87(2)(b).

Officers must provide a business card to the subject of a law enforcement activity at the conclusion of the activity. Searches of persons or property constitute a law enforcement activity. NYC Administrative Code, Section 14-174 (BR14).

§ 87(2)(g) it is recommended that **Allegation C** be closed as **alleged victim uncooperative**.

§ 87(4-b), § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the second complaint in which § 87(2)(b) is a party and the first complaint in which § 87(2)(b) is a party (BR17)
 - § 87(2)(b)
- Lt. Padovani has been a member of the service for 12 years, has been a subject in five complaints involving six prior allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of September 4, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to his complaint (BR18).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 13

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date